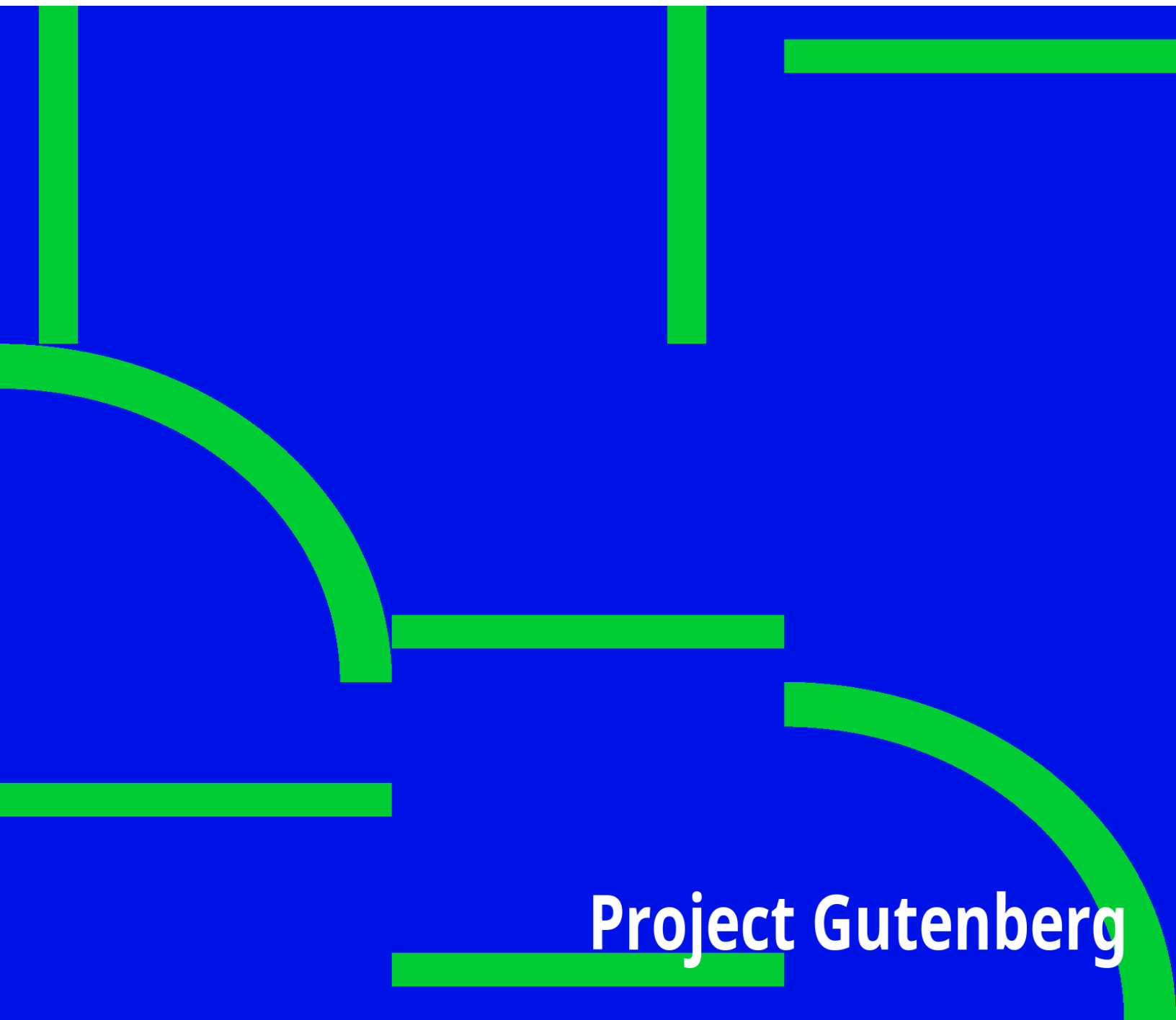


Their Crimes

J. Esslemont Adams

The background of the lower half of the image is a solid blue color. Overlaid on this are several thick, bright green geometric lines. These include two vertical lines, one horizontal line at the top right, a horizontal line in the middle, and two large, thick curved lines that sweep across the lower portion of the frame. The text 'Project Gutenberg' is positioned in the bottom right corner, partially overlapping the green lines.

Project Gutenberg

Their Crimes

J. Esslemont Adams

Project Gutenberg

The Project Gutenberg eBook of Their Crimes

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Their Crimes

Contributor: Léon Mirman

Editor: J. Esslemont Adams

Release date: November 1, 2003 [eBook #10225]

Most recently updated: October 28, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/10225

Credits: Produced by Jonathan Ingram, Dave Morgan and PG Distributed Proofreaders

*** START OF THE PROJECT GUTENBERG EBOOK THEIR CRIMES

THEIR CRIMES

Translated from the French

1917.

It is proposed to devote any profits from the sale of this work to The League of Remembrance, or for relief work in Lorraine.

CONTENTS

Preface

Introduction

Robbery

Incendiarism

Murder

Outrages on Women and Children

Killing the Wounded

Sheltering behind Women

Martyrdom of Civilian Prisoners

German Excuses: Lies and Calumny

The German Appeal

Appeal by Belgian Workmen

Conclusion

PREFACE.

The purpose of this book is to remind English-speaking people all over the Empire and our Allies in America of the wanton destruction and unspeakable terror which have overwhelmed the regions of France and Belgium occupied by the Boche, and also to quicken a true perception of the reparation and punishment due when peace is made with the enemy. In many minds time has dimmed the horrors of August and September 1914. When war weariness is apt to sap resolution and the possibility of a patched up peace is furtively canvassed, the great world of the English-speaking race should call to remembrance the inhuman and barely credible acts of brutality and bestiality committed in cold blood by the German race.

No apology is made for this book. It is a translation of a document which has created a profound impression in France. It is an authoritative record of German crimes committed on the people of Belgium and Northern France, attested by the Mayors of twenty-six French towns. Some time ago permission was obtained from the French Committee of Publication (the Prefect of Meurthe-and-Moselle, and the Mayors of Nancy and Luneville) to produce an English version on condition that the translation be an "exact and literal translation." This has been completed and the Editor, the Rev. J. Esslemont Adams, an Assistant Principal Chaplain with the British Expeditionary Force in France, is indebted to the friends who have assisted in producing the work.

INTRODUCTION

This is a book of horrors, but a book of plain truths! Where have we discovered our facts? They are taken from three sources: *First*, Four reports issued by the French Commission of Enquiry[1]; and "Germany's Violation of the Laws of Warfare," published by the French Ministry of Foreign Affairs; *Second*, Two volumes containing twenty-two reports of the Belgian Commission[2], and the Reply to the German White Book of the 15th May, 1915; *Third*, Notebooks found upon a large number of German soldiers, non-commissioned officers, and officers, who have been wounded or taken prisoners, and translated under the direction of the French Government. These valuable records, in which the bandits and their leaders have imprudently given themselves away, are real "*pièces à conviction*."

These reports in their entirety form an overwhelming indictment. We wish that everyone could study them in full. But the books are large, running to thousands of pages, and will not find their way to the general public.

Yet everyone ought to know how the Germans carry on war. We have therefore made selections from these documents in order to compile this small pamphlet. A dismal task, this wading through mud and blood! And a hard task, to run through all these reports, pencil in hand, with the idea of underlining *the essential facts*! You find yourself noting down each page, marking each paragraph; and, lo and behold, at the end of the book, you

have selected *everything*— that is to say, nothing. One might as well start to gather the hundred finest among the leaves of a forest, or to pick up the hundred most glittering grains among the sand on a beach. All we can do is to take the first examples which come to hand. This, then, is not a collection of the most stirring and striking German crimes, but simply a book of samples. Until complete statistics are forthcoming, two classes of outrage stand out, and must remain ever present to the mind: murdered civilians can be counted in thousands; houses wilfully burned, in tens of thousands.

For want of time and space we have concerned ourselves here only with crimes committed in Belgium and France, and we have had no thought of separating the two neighbouring sister nations.

Our part in this work is a modest one. Taking at random a certain number of *facts*, we have grouped them under different headings to make perusal easier for the reader. To indicate the references would have been impossible. Each line would have required a foot-note; the notes would have been as long as the text, and both the length of, and the cost of producing this pamphlet would have been doubled.

It is enough to state that there is not a single fact published here that cannot be verified by our readers in one or other of the documents already referred to. Nothing but facts are set down, absolute bare facts, and it is for the reader to form his own conclusions. When he has studied these "samples," and begins by means of them to learn the truth, then, and only then, will he have the right to choose, according to his conscience, between remembrance and oblivion, between pardon and punishment.

L. MIRMAN, Prefect of Meurthe-et-Moselle.

G. SIMON, Mayor of Nancy.

G. KELLER, Mayor of Luneville.

FOOTNOTES:

[1] The members of this Commission were MM. G. Payelle (Premier Président de la Cour des Comptes), A. Mollard (Ministre Plénipotentiaire), G. Maringer (Conseiller d'État), E. Paillot (Conseiller à la Cour de Cassation)—Rapports et Procès-verbaux, vols i., ii., iii., iv., Imprimerie Nationale.

[2] The Commission, consisting of men of the highest position in Belgium, is presided over by M. Van Iseghem (Président de la Cour de Cassation). Its reports and the "Reply to the German White Book" have been published by Berger-Levrault, from which firm we have also "Carnets de Route" (J. de Dampierre) and "Paroles Allemandes." "Crimes allemands d'après des té-moi gnages allemands," by J. Bédier, is published by Colin.

ROBBERY

We shall not waste time over the looting of cellars, of larders, of poultry yards, of linen-chests, or of whatever can be consumed promptly, or immediately made use of by the troops—all these are the merest trifles. Let us also dismiss pillage, organised on a large scale by the authorities, of all sorts of raw material and industrial machinery: the bill on this score will come to several thousand million francs. Let us likewise put aside official robberies, committed by governors of towns, or provinces, from municipal treasuries (even the treasury of the Red Cross at Brussels was robbed), usually under the form of fines, or of taxes imposed under transparent pretences. There again there will be millions to recover.

We shall deal here with *personal robberies* only, as distinct from the pilfering carried on by hungry soldiers, distinct too from the regular contributions levied on a conquered country by an unscrupulous administration. These robberies are innumerable, committed sometimes by private soldiers, but often by officers, doctors, and high officials. Here are some examples.

(1) *Soldier thieves*: They are rougher in their dealings, and kill those who offer resistance. It is a case of "Your money or your life." Madame Maupoix, aged 75, living at Triaucourt, was kicked to death while soldiers ransacked her cupboards. Monsieur Dalissier, aged 73, belonging to Congis, was summoned to give up his purse: he declared that he had no money; they

tied him up with a rope and fired fifteen shots into his body. Let us pass quickly over the "soldier thief"—merely small fry!

(2) *Officer thieves*: At Baron, an officer compelled the notary to open his safe, and stole money and jewellery from it. Another, after going through several houses, was seen wearing on his wrists and fingers six bracelets and nine rings belonging to women. Soldiers who brought their officer a stolen jewel received a reward of four shillings. The robberies at Baccarat and Creil were "directed" by officers. At Creil, a captain tried to induce Guillot and Demonts to point out the houses of the richest inhabitants, and their refusal cost them harsh treatment. At Fossé, a French military doctor in charge of an ambulance, conveying two hundred patients, and himself wounded, was arrested and taken before a captain. The captain told the doctor that he would have him shot, and meanwhile opened the doctor's tunic with his own hand, took out his pocket-book and appropriated the 400 francs he found in it.

Officers and privates sometimes share the stolen money. From a diary belonging to a titled Lieutenant of the Guards, let us quote this note:—

"Fossé. Village entirely burnt. The 7th Company made 2000 francs in booty."

From another officer's note-book:—

"More than 3000 francs booty for the battalion."

Another diary, after the sacking of a place, gives a detailed account of the distribution thus:—

"460 francs for the first lieutenant, 390 francs for the second lieutenant, etc...."

(3) *Doctor thieves*: At Choisy-au-Bac, two army doctors, wearing their brassards, personally sacked the house of a family named Binder. At Château-Thierry some doctors were made prisoners: their mess-tins were opened and found to be full of stolen articles. After Morhange, a French doctor of the 20th Corps remained in the German lines to be near his wounded. He was accosted by one of his German 'confrères.'^[3] who with his own hands stole his watch and pocket-book.

At Raon-sur-Plaine, after the retreat of our troops, Dr. Schneider remained behind with thirty wounded. Next day up came a German ambulance with Professor Vulpius, a well-known German scientist of Heidelberg University, who must have presided over many international medical congresses. As soon as he was installed, "Herr Professor" intimated to his French fellow-doctors that he was "going to begin with a small customary formality." The formality was a simple one: his colleagues were to hand over to him "all the money they had on them." "I strongly protested" (declared the French doctor, on oath), "but we were compelled to hand over our purses and all their contents. Having relieved us in this way, he turned to our poor wounded, who were all searched and stripped of their money. There was nothing to be done: we were in the hands, not of a doctor, but of a regular brute...."

(4) *Royal thieves*: After living about a week in a château near Liège, H.R.H. Prince Eitel Fritz, the Duke of Brunswick, and another nobleman of less importance, had all the dresses that could be found in the wardrobes belonging to the lady of the house and her daughters packed up before their own eyes, and sent to Germany.

* * * * *

These thieves are often *facetious*: they give as compensation a so-called receipt or bond (in German, of course), which in French means, "Good for a

hundred lashes," or "Good for two rabbits," or "To be shot," or "Payable in Paris".... They are also *disgusting*. In houses robbed by them they leave, by way of visiting cards, excrement in beds, on tables, and in cupboards. They are sometimes *unnaturally vicious*. In a village of Limbourg they burnt in a stable a stallion valued at 50,000 francs, and "forced the farmer, his wife and children to witness the crime on their knees with their arms raised." Amongst the crowd of unfortunate people brought from Louvain to Brussels were thirteen priests. The soldiers at a German guard-house stopped the column, and ordered the priests to come out. To shoot them? No. They forced them into a pigsty, from which they had driven out the only pig. Forthwith they compelled most of them to strip off all their clothes, and robbed them of everything of value they possessed.

These thieves are *practical* too. At Dinant, safes were opened with oxy-hydrogen blow-pipes, brought expressly for that purpose. They have a partiality for safes, and in this connection the story of Lunéville deserves recording. A house near the station, belonging to M. Leclerc, was set on fire; the walls alone remained standing, and in one of them (on the second floor) a safe was left intact. A non-commissioned officer, named Weill, with a party blew up the wall with dynamite, and the safe was extricated from the rubbish, carried to the station, put on a truck, and sent to Boche-land. This man Weill, before the war, often came to Luneville on business with hops, was always well received there, made himself agreeable and knew everybody. When the Germans settled in the unfortunate town he played a very important part, in spite of his low rank, in acting as agent, confidential clerk and guide to the Commanding Officer.

The robbers are also business-like in their transport arrangements as to carriages, military waggon, lorries, and motor cars. At Compiègne, where the home of the Orsetti family was sacked, silver plate, jewellery and articles of value were collected in the courtyard of the château, then

classified, registered, packed and "put into two carts, upon which they took care to place the Red Cross flag." We read in the note-book of a wounded German soldier, under medical treatment at Brussels, "A car has arrived at the hospital, bringing war booty, a piano, two sewing machines and all sorts of other things."

In 1870, our clocks were in most demand; now, pianos form the attraction, and an immense number have been sent to Germany. They are the article particularly favoured by the Boche ladies. In a château retaken by our troops, an officer left behind a letter from his wife, in which is written, "A thousand thanks for the beautiful things you sent me. The furs are magnificent, the rosewood furniture is exquisite; but don't forget that Elsa is always waiting for her piano."

These women, however, are not all as patient in waiting as Elsa. They frequently come and choose for themselves, and preside over the packing. They have been seen arriving in motor cars from Strasbourg or Metz, at many towns in Lorraine, at Lunéville, Baccarat, and elsewhere.

All note-books, more or less, contain such items as these: "Wholesale pillage and abundant loot," "Everything destroyed or sacked," "Looting going strong," "Played the piano; looting going strong." This very German formula frequently occurs, "*Methodically* plundered." And again, "We have been allowed to plunder; we didn't require to be told twice: whole bales of loot."

"*Rethel*. The Vandals could not have done better." (The officer who makes this indiscreet admission and seems to protest against the thefts committed, writes on the following page: "I have found a silk rainproof coat and a camera for Felix.")

"*Courcy*. The village, and the workmen's cottages looted and sacked. Atrocious. There is something, after all, in what they say of German barbarians."

"*Ottignies*. The village was pillaged. The blond beast has made plain what he is. The Huns and the free-lances of the Middle Ages could not have done better."

"*Cirey*. During the night incredible things were done: shops sacked, money stolen, rapes: enough to make one's hair stand on end."

FOOTNOTES:

[3] We have not found this fact recorded in the Commission's Reports. It was told to us, on his return from captivity, by Dr. Marlier, of the 20th Corps, taken prisoner at Morhange, and Dr. Marlier is the soul of honour.

INCENDIARISM

In order to punish imaginary crimes, attributed to individuals or townships, or without even taking the trouble to discover any kind of pretext, the Germans often, especially after looting, set everything on fire *so as to make all traces disappear*. Sometimes, as at Courtaçon, they compelled the inhabitants to provide the material for burning their own houses; or, as at Recquignies, forced prisoners "to set the houses of the doctor and mayor on fire with lighted straw." But generally they do the work themselves. They have a *special service* for this, and all the requisite incendiary material is carefully prepared; torches, grenades, fuses, oil pumps, firebrands, satchels of pastilles containing very inflammable compressed powder, etc. German science has applied itself to the perfecting of the technique of incendiarism. The village is set alight by a *drilled* method. Those concerned act quite coolly, as a matter of duty, as though in accordance with a drill scheme laid down and perfected beforehand.

Of course, fire once let loose, these people have to see that it does its work completely: accordingly, at Louvain, they destroyed the fire-engines and fire-escapes; at Namur, they stopped the firemen at the very moment they were preparing to do their duty.

In this way they sometimes wilfully burned down whole blocks of dwellings (Lunéville): sometimes an entire district (105 houses at Senlis, 112 at Baccarat): sometimes almost a whole town itself (more than 300

houses at Gerbéviller, 800 at Sermaize, 1,200 at Dinant, 1,800 at Louvain[4]). On other occasions they did not leave a house standing (Nomeny, Clermont-en-Argonne, Sommeilles).

The complete list of buildings, cottages, farms, villas, factories, or châteaux, burned wilfully in this way by hand, will be a formidable one, amounting to tens of thousands.[5]

Refinement of cruelty frequently occurs. At Aerschot "women had to witness the sight of the conflagration holding their hands up. Their torture lasted six hours." At Crévic, the Germans began their sinister work by burning a château which they knew belonged to General Lyautey. The troops, commanded by an officer, shouted out for Madame and Mademoiselle Lyautey "that they might cut their heads off."

The houses destroyed by fire were not always uninhabited. At Maixe, M. Demange, wounded in both knees, dragged himself along and fell prostrate in his kitchen; his house was set on fire and Madame Demange was forcibly prevented from going to the rescue of her husband, who perished in the flames. At Nomeny, Madame Cousin, after being shot, was thrown into the burning building and roasted. At the same place, M. Adam was thrown alive into the flames. Let us note in connection with him, to their credit, an act of comparative humanity. Finding that the unhappy man was not being burnt fast enough, they ended his misery in the flames by shooting him. At Monceau-sur-Sambre, where they set fire to 300 houses, they confined the two brothers S. in a shed, and the unfortunate men were burnt alive.[6]

The soldiers' diaries are filled with descriptions of incendiarism, some of which we now quote. "Returned by Mazerulles, which was burnt as we passed through, because the engineers found a telephone there connected up with the French."[7] "The whole village was in ablaze. Everything destroyed in the street, except one small house; in front of the door was a

poor woman with her six children, her arms raised and begging for mercy. And every day it is the same thing."

Parnx. "The first village burnt (in Lorraine, on the 10th August); after that the fun began. Villages in flames, one after the other." Another notebook simply states, "Sommepy—horrible carnage. The village entirely burnt; the French thrown into the burning houses; civilians with the rest." Another recalls theatrical memories. "The village is ablaze; it reminds one of the conflagration of Walhalla in the 'Twilight of the Gods.'"

Here is a poet speaking: "The soldiers set up the red cock (*i.e.*, fire) upon the houses, just as they like." This poet is moved, and speaks of "pure vandalism" on the part of his companions in arms. And again, a musician writes, "Throwing of incendiary grenades into the houses; a military concert in the evening—'Nun danket alle Gott'! (Now thank we all our God)." Finally, a Bavarian: "The village (Saint-Maurice, Meurthe-et-Moselle) was surrounded, and the soldiers posted one yard apart so that no one could escape. Then the Uhlans set fire to the place, one house after the other. No man, woman, or child could possibly escape. Only the cattle were removed in safety, because cattle have some value. Anyone trying to escape was shot. Everything in the village was destroyed." We shall see presently that they even went so far as to burn ambulances.

FOOTNOTES:

[4] They destroyed by fire the Library at Louvain, with its 200,000 volumes and its incomparable treasures. By means of shells and fire they have injured in one place, totally destroyed in another, wonders of art that were an integral part of our human heritage; our Cathedrals at Rheims, Arras, Ypres, &c.

[5] Belgium alone accounts for about 20,000.

[6] This fact is quoted in the admirable book by Captain A. de Gerlache, entitled "Belgium and the Belgians during the War," published by the firm of Berger-Levrault.

[7] See note at foot of page 31. (this is foot-note 11)

MURDER

Not having sufficient space for a complete catalogue, we shall here simply mention the judicial murders of Miss Cavell, Eugene Jacquet, Battisti, and others, in order to honour the memory of those noble victims. For the same reason, as they are now well known to everyone, we content ourselves with merely recalling the criminal torpedoing of the *Lusitania*,^[8] *Ancona*, *Portugal*, *Amiral-Ganteaume*.... all merchant steamers, without any military character whatever, employed in carrying passengers of every nationality, and the last-named crowded with refugees.

We may pass over the crimes committed *from a distance*, so to speak, on unfortified towns, with fieldpieces, long-range guns, aeroplanes, and Zeppelins, merely noting that the Germans *were the first* to fire shells into the centre of towns indiscriminately. If they made an exception, it was to aim at the cathedral square, when people were leaving after Mass, as at Nancy, or into the market-place at the time when women are busiest, as they did at Lunéville.

We only mention here such outrages as were committed at close quarters with hand-weapons, bayonets or rifles. The list is a long one. Will the exact number of victims ever be known? In Belgium alone it has been proved that up to now more than 5,000 civilians have been assassinated: grown men, old people, women and children. They slaughtered their victims sometimes one by one, sometimes in groups, often in masses. They were not content

only with killing. At one place they organised round the massacre such tragic scenes, and at another displayed such refinements of cruelty, that reason falters in face of their acts, and asks what terrible madness has brought this race to such low depths? Is it possible? Yes, it is. Judge by the following examples:—

At Forêt, the village schoolmaster was shot for refusing to trample under foot the national flag, torn down from the front of the school.[9] At Schaffen, A. Willem was tied to a tree and burnt alive, and two other unfortunate men were buried alive. Madame Luykx and her little girl, 12 years old, were shot together in a cellar. J. Reynders and his young nephew, 10 years of age, were both shot in the street. At Sompuis, an old man named Jacquemin, aged 70, was bound to his bed by an officer and left there without food for three days, dying soon after his release.

A Westphalian prisoner states, "The commanding officer ordered us to shoot two women, and we did so. One of them was holding a child by the hand, and in falling she dragged the child over with her. The officer gave orders to shoot the child, because it could not be left alone in the world." At Rouves, a Government clerk refused to tell a Bavarian officer the numbers of the French regiments in the neighbourhood. The officer killed him with two shots from his revolver. At Crézancy, another officer shot with his own hand young Lesaint, 18 years old, "to prevent his being a soldier later on." At Emberménil, Madame Masson was shot for having, in absolute good faith, given some wrong information. As she was obviously in a state of pregnancy they made her sit down on a bench to meet her fate. At Ethe, two priests were shot "for having buried some weapons." At Marquéglise, a superior officer ordered the arrest of four young fugitives. Learning that two of them came from Belgium, he exclaimed, "The Belgians are filthy people," and without more ado took his revolver and shot them one after the other. Three were killed outright, the fourth expired the following day.

From the crowd of fugitives which left Louvain in flames, the priests were singled out, and searched. On one of them, a Jesuit father, by name Dupierreux, they found a note-book containing the following note in French, "When I used to read about the Huns under Attila devastating towns, I smiled. I smile no longer now that I have seen with my own eyes the hordes of to-day setting fire to the churches and library of Louvain." In front of the assembled troops the priests were placed in a semi-circle round the Jesuit Father. The incriminating phrase was read out, and then translated into German. The lieutenant said that it constituted an incitement to murder, and that the Jesuit must be shot on the spot. The sentence was carried out forthwith, and the other priests, his companions, were made to bury him where he fell.

At Pin, some Uhlans found two young boys on the road. They tied them by the arms to their horses and galloped off. The bodies of the poor lads were found a few miles away—their knees were "literally crushed"; one had his throat cut and both had several bullets in their heads. At Sermaize, a labourer, named Brocard, and his son, were arrested. His wife and daughter-in-law, mad with terror, threw themselves into a neighbouring stream. The old man broke away, and ran to try and save them. The Germans dragged him away.... Four days later Brocard and the son, on being liberated, returned home, and after a search, found the bodies. The two women, while still in the water, had been shot several times through the head. A parish priest named Dergent was taken to Aerschot, stripped, and tied to a cross in front of the church; his fingers and toes were crushed and broken with the butt-end of a rifle. The inhabitants were made to pass in front of him and were each compelled to urinate on him in turn; then he was shot and his body thrown into the canal.[10]

At Hériménil, during the pillage, the inhabitants were shut up in a church, and kept there for four days without food. When Madame Winger, 23 years

of age, and her three young servants, one girl and two boys, were too slow in leaving her farm to go to the church, the captain ordered his men to fire on them. Four more dead bodies!

The Germans arrived at Monchy-Humières. A group of inhabitants watched them marching past. No provocation whatever was offered, but an officer thought that he heard someone utter the word "Prussians." He at once called out three dragoons, and ordered them to fire upon the group—one killed and two wounded—one of the latter being a little girl of four.

At Sommeilles, when the fire—which destroyed the whole place—broke out, Madame X. took refuge in a cellar belonging to M. and Madame Adnot, who were there, with their four children, the eldest a girl of 11 years. A few days after, on returning to the village, our soldiers found the seven bodies in the cellar lying in a pool of blood, several of them being horribly mutilated. Madame X. had her right arm severed from her body; the little girl's foot had been cut off, and the little boy of five had his throat cut.

At Louveigné a certain number of men were shut up in a blacksmith's shop; in the afternoon the murderers opened the door as if it were a pigeon-shooting competition, drove the prisoners out, and shot them down—a ghastly group of 17 corpses.

At Senlis the heroic Mayor, M. Odent, and six members of his staff were shot.

At Gerbéviller they forced their way into the house of M. and Madame Lingenheld; seized the son, aged 36, exempt from service, and wearing the badge of the Red Cross, tied his hands, dragged him into the street and shot him. They then returned to look for the father, an old man of 70. Meanwhile the mother, mad with terror, made her escape. On coming out she saw her son lying on the ground. As he still showed signs of life, they threw paraffin

over him and roasted him. The father was shot later on with fourteen other old men. More than 150 victims were identified in this parish.

At Nomeny, M. Vassé provided shelter for a number of neighbours in his cellar. Fifty soldiers got in and set fire to the house. To escape the flames the refugees rushed out and were shot one by one as they emerged. Mentré was killed first; his son Léon, with his little eight-year-old sister in his arms, fell next: as he was not quite dead they put the barrel of a rifle to his ear and blew his brains out. Then came the turn of a family named Kieffer. The mother was wounded; the father, his boy and girl, aged respectively 10 and 3, were shot down. They fell on them with fury. Striffler, Guillaume, and Vassé were afterwards massacred. Young Mlle. Simonin, 17 years old, and her small sister, afraid to leave their refuge in the cellar, were eventually driven out by the flames, and immediately shot at. The younger child had an elbow almost blown off by a bullet; as the elder girl lay wounded on the ground, she was deliberately kicked by a soldier. At Nomeny 40 victims were identified.

And now we come to some of the *wholesale slaughters*. At Louvain, more than 100 victims; at Aerschot, over 150; at Soumagne, 165; at Ethe, 197; at Andenne, over 300; at Tamines, 400; at Dinant, upwards of 600, of whom 71 were women, 34 old men of over seventy, 6 children from five to nine years old, and 11 under five. At Aerschot, a first batch of 78 men were taken out of the town, and ordered to advance in groups of three, holding each other by the hand, when they were made to pass in front of some German Military Police, who shot them all at short range with revolvers. Others had their hands bound so tightly that many screamed with pain: they spent the night lying on the ground, and were shot the next day. Many, before execution, were compelled to dig their own graves. At Dinant, the victims were placed in two rows, the first kneeling, the second standing. Then came the order—"Fire!" At Tamines, several hundred men were

massed in the Place Saint-Martin, on the bank of the Sambre. The assassins stood ten yards away and fired a volley. All fell, but some were not wounded. The officer in command ordered them to "stand up." A second volley was fired. As soon as the firing finished, there was a frightful scene which lasted until the evening—the killing of the wounded. Many soldiers, some wearing the badge of the Red Cross, approached their victims by the light of small lanterns, and passed through their ranks, clubbing them with the butt end of their rifles, and stabbing with bayonets. A perfect shambles!

In these horrors we do not discern the musical note, or the acknowledgment of the "Old German God." Yet, here is a specimen:—

At Andenne, Colonel Schumann, in command of the Potsdam Rifles, organised a grand concert in the evening at the Place des Tilleuls. The entertainment ended with a prayer!

It now remains for us to publish a few extracts from note-books found upon officers and privates. Some are short items like the following:—"Pepinster, 12th August. Burgomaster, Priest and Schoolmaster shot, and houses burnt to the ground. We resume our march." Another, "Villers-en-Fagne, village in flames. The population had notified the French of the approach of the grenadiers; thereupon the hussars set fire to the village, the Parish Priest and others being shot."

Others enter into details of the executions. "*Leffe*. We shoot everyone who fires on our men. We put three, one behind the other, and a Marburg rifleman kills them outright with a single shot. It is war to the knife."

Another expresses something other than enthusiasm for such work. "Considering that the King (of the Belgians) has given orders to defend the country by all possible means, we have been ordered to shoot every male inhabitant. At Dinant more than 100 were collected in a crowd and shot. A

dreadful Sunday." Another, an aesthete, writes as follows: "During the night many more civilians were shot, so many that we were able to count over 200. Women and children, with lamps in their hands, were compelled to witness the horrible sight. We afterwards ate our rice among the dead bodies. Sadly beautiful." He adds (in shorthand) "Captain Hermann was drunk."

Again another: "*Dinant*. We have been firing on everyone who showed himself, or on those thrown out of the houses, men or women. The bodies lie in the streets, in heaps a yard deep."

A Saxon officer writes: "My company is at Bouvignes. Our men behave like vandals: everything is upset; the sight of the slaughtered inhabitants defies all description; not a house is left standing. We have dragged out of every corner all survivors, one after another, men, women, and children, found in a burning cloister, and have shot them 'en masse.'"

The following depositions on the massacres at Nomeny are made by prisoners, one a Bavarian officer in the Reserve, the other a private in the same regiment. The lieutenant says: "I gathered the impression that it was impossible for the officers at Nomeny to prevent such acts. As far as I can judge, the crimes committed there, which horrified all the soldiers who were at Nomeny later on, must be put down to the acts of unnatural brutes." The soldier says, "At five o'clock regimental orders were received to kill every male inhabitant of Nomeny, and to raze everything to the ground; we forced our way into the houses." Here is a more detailed account of a massacre near Blamont. "All the villagers fled: it was terrible; their beards thick with blood, and what faces! They were dreadful to look at. The dead were all buried, numbering sixty. Among them were many old men and women, and one unfortunate woman half confined—the whole being frightful to look at. Three children were clasped in each other's arms, and

had died thus. The Altar and the vaulting of the church were destroyed because there was a telephone[11] communicating with the enemy. This morning, 2nd September, all the survivors were expelled. I saw four small boys carrying away on two sticks a cradle containing a baby of five or six months. All this is dreadful to see. Blow for blow: thunder against thunder! Every thing is given up to pillage. I also saw a mother with her two children; one had a big wound on the head, and one eye knocked out."

FOOTNOTES:

[8] They have decorated the pirates who sank the *Lusitania*. They glory in the crime, and have even struck a commemorative medal in its honour.

[9] In this case, and many of the following ones, the reader is requested to note, and remember, the *motive* for the murders.

[10] This cruel treatment of the Abbé Dergent, priest of Gelrode, near Louvain, is reported by a neutral witness, Father G., a student at Louvain. The German soldiers accused the Belgian priests of every conceivable crime; the Assistant-Priest of Sainte-Gertrude (Louvain), who was remonstrating with a soldier, received this reply: "We are Catholics too, but you are pigs and black devils." In Belgium about one hundred of the clergy were massacred. Note further that in this unfortunate country *doctors* were particularly ill-treated; thirty-seven being shot in the small parishes, while more than one hundred and fifty disappeared altogether from large towns.

[11] To whom did it belong, and where was it? Telephones exist in every district of Meurthe-et-Moselle. Besides, our army installed field telephones which were not all destroyed at the time of their retreat. It is a most foolish pretext, yet where can one find a more stupid one than this? A German official communiqué, in order to prove that the general rising of the people

had been organized for a long time, declares, "that dépôts of arms were installed, where each rifle bore the name of the man for whom it was intended." It is absolutely clear that this applies to arms taken from civilians by order of the local authorities in Belgium and France, and deposited at the Town Hall, every weapon bearing the name of its owner. Would they have taken that for an arsenal? No, stupid as they may be, they are not so foolish as that. They feign stupidity simply because they know very well that the conscience of the civilized world is beginning to be moved.

OUTRAGES ON WOMEN AND CHILDREN

We might write a long and heartbreaking chapter on this pitiful subject, but let the following suffice. The Report of the French Commission of Enquiry concludes with these words, "Outrages upon women and young girls have been common *to an unheard-of extent*." No doubt the bulk of these crimes will never come to light, for it needs a concatenation of special circumstances for such acts to be committed in public. Unfortunately and only too often these circumstances have existed, *e.g.*, at Beton-Bazoches and Sancy-les-Provins, a young girl, and at St. Denis-les-Rebaix, a mother-in-law and a little boy of eight years old, and at Coulommiers a husband and two children, were witnesses to outrages committed on the mother of the family. Sometimes the attacks were individual and sometimes committed by bodies of men, *e.g.*, at Melen-Labouxhe, Margaret W. was violated by twenty German soldiers, and then shot by the side of her father and mother. They did not even respect nuns.[12]

They did not even spare grandmothers (Louppy-le-Château, Vitry-en-Perthois ...).

Nor did they respect children.... At Cirey, a witness (a University professor), whose statements one of us took down a few days after the tragedy, cried to a Bavarian officer, "Have you no children in Germany?" All the officer said in reply was, "My mother never bore swine like you."

Now and then they let themselves loose on a whole family; at Louppy, the mother and her two young girls aged thirteen and eight, respectively, were simultaneous victims of their savagery.

The outrages sometimes lasted till death. At Nimy, the martyrdom of little Irma G. lasted six hours till death delivered her from her sufferings. When her father tried to rescue her he was shot, and her mother was seriously wounded. Indeed, it was certain destruction to any frenzied parent who tried to defend his child. A clergyman of Dixmude says, "The burgomaster of Handzaeme was shot for trying to protect his daughter." And how many other cases have occurred! We have not the heart to continue the list.

FOOTNOTES:

[12] See the report of the French Commission (vol. i., page 35). See also, in the "Reply to the White Book," p. 500, the moving letter of Cardinal Mercier to von Bissing: "My conscience forbids my divulging to any tribunal the information, alas, only too well substantiated, which I possess. Outrages on nuns have been committed ..."

KILLING THE WOUNDED

There are *great numbers* of wounded who, on their solemn oath, have related how, when lying on the field of battle, they saw their wounded comrades "finished off" by rifle or revolver shots, or by blows from butt-ends, or by bayonet stabs, or kicked to death by German soldiers, non-commissioned officers, and even by officers.[13]

We cannot pause to analyse these innumerable depositions. There is other evidence. How often, when a counter-attack has put us in possession of ground lost the day before, have we found poor fellows "finished off"—with their throats cuts, as in the case of the two sergeants of the 31st Chasseurs at the Pass of Sainte-Marie, or "with their own bayonets driven into their mouths," like the poor little fellow of the 17th. The enemy often runs amok like this:—"On August 23rd, the Curé of Réméréville tended Lieutenant Toussaint (who passed out first at the Forestry School in July). When he fell in battle, this young officer was bayoneted by all the Germans who passed near him, and his body was a mass of wounds from head to feet." At Oudrigny "a German officer met a French vehicle showing the Red Cross flag, and loaded with ten wounded. He deployed his company, and fired two volleys at it." At Bonviller, an officer murdered nine French wounded, stretched helpless in a barn, by shooting them through the ear. On 23rd August at Montigny-le-Tilleul, M. Vital was caught in the act of tending a French soldier, L. Sohier by name, wounded in the head and side.

Such a crime deserved punishment, and the wretches first shot the orderly and then the patient.

At Ette they set a shed on fire and roasted more than twenty wounded who were lying there.

We all know the celebrated order of General Stenger in the region of Thierville (Meurthe-et-Moselle):—"No prisoners are to be taken. All prisoners, whether wounded or not, must be slaughtered."

It was not only in Lorraine that such orders were given. Listen to the depositions of a German soldier: "The same day we saw eighteen other Frenchmen. Lieutenant N. told us to shoot them as he did not know what else to do with them."

Read this letter found at L'Écrouvillon in a German trench which we recaptured: "Every day we take many prisoners, but they are shot at once as we no longer know where to put them."

Think of the diary in which a German soldier near Peronne recorded his impressions of the day: "They lay in heaps of ten or twelve, some dead and some still living. Those who could still walk were marched off. Those who were wounded in the head or lungs, and could not lift themselves up, were finished off with a bullet. That is the order which we got."

A German soldier, while being nursed in a hospital at Nancy, confided to Dr. Roemer that the wound in his stomach "had been inflicted on him by a German N.C.O. because he refused to finish off a wounded Frenchman."

Wounded were not only massacred on the field of battle, but field hospitals were also the scene of atrocities. At Gomery, in a casualty clearing station, under Dr. Sédillot, there were numerous wounded remaining in the

German lines. A German officer with twenty-five men visited the place and inspected it and retired, saying that all was in order. But a N.C.O. and a party of soldiers remained in the street outside. They were excited and kept shouting, "It is war to the death," and making signs of cutting throats. They rushed in and with their revolvers shot down Dr. Sédillot (who happily survived, with others, to give evidence), and set fire to the place. Maddened by the flames, the wounded (many of whom had had amputations performed on them that very morning) leapt from the windows on the first floor and fell into the garden, where the executioners picked them up, gathering them in a bunch, and shot them. In this way Lieutenant Jeannin and Dr. Charette were murdered, and from one hundred to one hundred and twenty officers and soldiers—whose wounds should have made them sacred—perished from shot or fire after terrible sufferings.

When all is said, however, it is better to kill wounded soldiers by fire or sword than by starvation, as the following incident shows: One hundred wounded Frenchmen, together with Dr. Bender, were brought to the Stenay barracks, and one hundred and eighty more came in shortly afterwards; the latter, having been left out unattended on the battle-field for five days, were in a terrible condition. Dr. Bender in vain begged the Germans for help in getting the wounded men out of the ambulances into the hospital. The Boches refused, and simply went on sucking their pipes. Though wounded himself, the doctor, with the aid of two male nurses (Frenchmen both), had to do the whole thing himself. For several days the Boches gave them no food at all. "Our poor fellows screamed with hunger,"[14] says the doctor, on oath, and adds, "I had sixty badly wounded with me, and begged the German army doctor to operate, but he said he had no time. I then asked his leave to operate myself, but his reply was, "You are in the German lines, and must conform to our rules." The doctor ends his pathetic evidence with the words, "Nearly all these unhappy men died of neglect."

We have seen doctors, like Professor Vulpius, actually steal money; but of all the types of Boche doctors, the most hideous is the hero of the following tale, taken from the deposition of Dr. Bender. "A French soldier, at Stenay, was under my treatment. He had a wound in his foot—not very severe, which did not need an operation at all. What was my astonishment to find that a German army surgeon had amputated his thigh? I could not help expressing my indignation, and the surgeon's only reply was, "He will be a man the less against us in the next war." [15] They will deny these crimes to-morrow, but in 1914 they gloried in them.

On the 18th of October a Silesian newspaper published an article sent from the front by a N.C.O., in which he says, "Men who are particularly tender-hearted give the French wounded the 'coup de grace' with a bullet, but the others cut and thrust as much as possible. Our enemies fought bravely ... whether they are slightly or badly wounded our brave Fusiliers spare the Fatherland as far as possible the expensive trouble of looking after numerous enemies. In the evening, with prayers of thanksgiving on our lips, we go to sleep." Are these mere boastings of crimes? No. The article was submitted to the Captain of the Company who certified it as correct and counter-signed it. The N.C.O., the Captain, the Silesian public, the whole German nation were delighted to see this abominable story of murder and shame appear in the paper under the heading, "A Day of Honour for our Regiment." [16]

FOOTNOTES:

[13] Report of the French Commission, vol. iii.

[14] He adds that certain orderlies—Lorrainers, belonging to the German Army—supplied them with food on the sly.

[15] French chivalry could hardly believe that a doctor would amputate a wounded enemy's limb without absolute necessity and in mere revenge, but such cases are, alas, not rare. See the awful tales of torture in the "Journal d'un Grand Blessé en Allemagne," by Charles Hennebois (pp. 137, 146), and the statement of a German doctor (p. 87), "Your doctors in France perform amputations as they please on our wounded. The order has therefore been given to amputate without hesitation, as reprisals, every damaged limb."

[16] Let us quote, to show the mental "make-up" of certain Germans, the conditions in which Captain Coustre of the 108th and Captain Lesourd of the 50th met their deaths. They were wandering over the battle-field where the enemy had been repulsed. They heard a cry for help. There was a soldier in one place and an officer in another who asked for a drink. They stopped and leant over them to give them a drink from their flasks when the wounded men blew their brains out.

SHELTERING BEHIND WOMEN

Let us call to mind the innumerable instances when the Boches put up their hands, or waved a white flag, and cried, "Kamerad," pretending to surrender: thus drawing our unsuspecting men towards them and then suddenly moving aside, to leave the field open to a party of riflemen or a machine-gun hidden away behind them. These are the tricks of cowards, which were constantly employed at the beginning of the war, and our men (at the cost of many victims) learned at last to guard against them. But they have done even more cowardly things than this. There was the German officer who, to protect himself from danger while taking observations, put three children round him. At Néry, twenty-five persons, women and children, were compelled to walk at the side of a Boche column to protect it from being enfiladed. Near Malines, six German soldiers who were taking with them five young girls, on meeting a Belgian patrol, placed the girls all round them to prevent the enemy from firing. At Jodoigne they put a Curé in front of them and made him walk with his arms folded, and they did the same at Hougaerde to another Curé who was killed. A similar fate befell several civilians at Mons. At Senlis, our men were firing to cover our retreat, and the Germans took some inhabitants out of the houses and made them walk in the middle of the streets while they themselves kept along by the walls. Many of these unfortunate people were killed. "In numerous places," says the Belgian Commission of Enquiry, "the Germans made civilians—men and women—walk in front of them." In this way a German

column passed through Marchienne, pushing ahead of them a body of several hundred civilians. They took the road for Montigny-le-Tilleul, where the first important battle with the French forces took place. At Sempst, during the fighting on the 25th August, men and women were placed in the front rank of the firing line. At Erpe, on the 12th September, a German column, attacked by a Belgian motor-machine-gun, took out of the houses twenty to twenty-five men and young people (including a child of thirteen), and made them walk in front in the middle of the road. The machine-gunners, seeing civilians in front of them, ceased firing. At Alost, a German company attacked the bridge. In front marched some thirty civilians with a machine-gun hidden behind them. At Nimy, with the butt-ends of their rifles, they drove in front of them 500 men, women and children towards the English, who in consequence dared not fire; and in this way the 84th and 85th Schleswig Regiments were able to continue their heroic march as far as Maubeuge.

When their adversary cannot actually see the human shield that they are using, they send a warning. On the 7th September, 1914, the Death's Head Hussars shut up all the inhabitants of the village with them in the Château of Saint Ouen-sur-Morin, and then, to avoid being shelled, informed the English of their "dispositions." They fired on anyone who tried to escape. At Mouzon, we saw a number of civilians being pushed in front of the enemy with the butt-ends of rifles, and we stopped firing. The wretched people moved suddenly to one side of the road, uncovering the Germans, and then we fired. The Boches, furious, fired their first volley not at us, but point blank at these non-combatants, who were decimated.

The cowards chiefly used civilians as shields, but sometimes they also made use of prisoners. At Keyem, they pushed one hundred Belgian soldiers in front of them, some with their hands tied, and others with their arms in the air. At Dixmude, they advanced under the shelter of forty

disarmed marines who had been taken prisoners. When they got in front of our lines our marines shouted, "For God's sake fire, these are Germans," and these heroes fell gloriously under the French bullets. Such deeds are countless.

The Boches will deny them later on, but in 1914 they did not deny them, but rather gloried in them as a "good idea." We can see this from the letter of the Bavarian Lieutenant Eberlein, published on the 7th October, 1914, by a leading Munich paper, "We had arrested three other civilians when a 'good idea' struck me. We made them sit on chairs in the middle of the street;—supplications from them, and blows with butt-ends of rifles from us. At last they were seated outside in the street with their hands convulsively clasped together. I felt sorry for them, but the plan worked at once. As I learnt later, the regiment which entered Saint-Dié, further to the north of us, had precisely similar experiences to our own. The civilians, whom they had put in the same way in the middle of the street, were killed by French bullets. I saw their dead bodies."[17]

FOOTNOTES:

[17] We have not, so far, come across any attempted justification, by German authors, of these cowardly acts; but such we shall have without fail. It is probable that the 93 "intellectuals" whose manifesto we recall to memory a few pages further on are preparing a fresh "appeal to the civilized world" with a view to explaining that the German troops—the representatives and trustees of *Kultur*—are authorised by God Himself to use *every means* for the protection of their precious lives.

MARTYRDON OF CIVILIAN PRISONERS

After having burnt our villages,[18] and shot the inhabitants by dozens in some places, and by hundreds in others, they frequently deported all or a part of the survivors to Germany. It is impossible at this moment to establish the number of those deported, but they were sent off by tens of thousands. These unfortunate people, men, women and children, who had witnessed and survived fires and massacres, who had seen their houses blazing and so many of those dear to them fall under the bullets of the assassin, and who were forced in some places to dig graves for their victims, and in others to hold a light for the executioners while they were finishing off the wounded,—these poor wretches are despatched to Germany.[19] What a journey, and what a place of residence!

Let us quote one story among a thousand. "Our escort was commanded by two German officers. They were unapproachable. Anyone who tried to speak to them was threatened with a revolver. In order that we might get a drink, we were made to collect empty meat tins which served as our drinking cups until we reached Cassel. We were abused and threatened wherever we went. Sometimes they made signs to us that they were going to shoot us, or hang us, or cut our heads off. They threw filth at our heads and spat in our faces. We were not going to stoop before them; the disgrace was not ours. It is they, not we, who are degraded. An officer who was present when our march-past took place aimed blows with a riding-whip at

everyone within his reach. Until we arrived at the railway, it was the same at every place where we met soldiers. We reached Marche after a nine hours' journey. We were conducted to a room marked as having accommodation for 100 soldiers, but they put 400 of us in there. The people of the place sent us slices of bread and butter, but it was the Germans who ate them. The latter gave us crusts of bread to eat. We were abominably cramped; a few managed to stretch themselves out, but the air was so poisonous that they could not remain in that position. At Melreux station we changed guards. They drove us with the butt-ends of their rifles to a spot where a train of cattle trucks was standing in the yard, and we had to get in. The previous occupants had been cattle, and the trucks had been cleaned in a very perfunctory fashion. There was neither straw nor seats. Off we went. Every time we stopped at a station the soldiers on guard there insulted us. It was even worse when once we arrived in Germany. They opened the doors on the platform side, and if we were on a line between two platforms, they opened the doors on both sides so as to rejoice German hearts by the sight of us. They treated us like wild beasts in a menagerie, and the officers and soldiers set the example while the women and children were not behindhand with abuse, and made threatening gestures. Our guards were applauded as if they were doing something heroic. At one station we saw a woman looking out of her window and shouting 'Hurrah!' The journey took 35 hours, and during the whole of that time we were only given food and drink once, and that thanks only to the Red Cross.[20] We arrived at Wilhelmshöhe (Cassel) at 3 a.m. on the 28th August, and were made to walk quickly through the streets. Our arrival had been notified, and in spite of the early hour, a hostile crowd, abusive and threatening, lined the route. The old and the lame could not keep up the pace at which we marched. Their companions helped and dragged them along, constantly beaten with butt-ends. At length, we arrived at the gaol, where they shut us in the cells in lots of three or four at a time. M. Bricet (Inspector of Forests) wanted to

take his son (aged 14) with him, but the gaoler said, 'Not the father and son together.' The prison authorities showed their surprise at the sort of criminals who had been entrusted to them, as the bulk of them were shopkeepers and artisans.

"Included in the number were the burgomaster of Dinant, a sheriff, professors, barristers, and judges. An imbecile, a dozen children of about 13, and some old men (one of whom was 81) made up the party. At the end of a week, we were assembled in a yard and told that we were not under sentence, but were detained in the interests of public safety."

In that prison the poor wretches were treated with much greater severity than ordinary prisoners, for they were shut up in cells and had no air. "By climbing on a chest one might open the window and see a little bit of the landscape. The ordinary prisoners were allowed to do this but we were forbidden." There was not a single chair. There was the skeleton of an iron bed which was quite useless as there was no mattress. There were four blankets, and two bundles of straw which very soon crumbled into dust. "One day a week we had an hour in the courtyard, and there we walked round and round in single file, being forbidden to walk two by two. There was a guard with fixed bayonets always with us. The food was absolutely inadequate[21] and we suffered continually from hunger. There was a certain Croibien who had been slightly wounded at Dinant by a bullet in his arm. His wound, neglected during the journey, had become septic and in spite of all his sufferings, nothing was done for him. It was not until after several days that it was decided to take him to the infirmary where his arm was amputated; he died the next day. Although his father and brothers were interned with him, they were not allowed to see him again, alive or dead."

M. Tschoffen, public prosecutor at Dinant, the high official who writes these lines, finishes his deposition with these words: "They had no reason

whatever for our arrest, and I do not see any reason that they could have for setting us at liberty. One fine day they told us that we were going to leave."

Here is another illustration: Before the 28th February, 1915, more than 10,000 persons, old men, women, and children, who had been deported from France to Germany, had been repatriated by way of Switzerland. All those who received them on their return were "alarmed at their ragged condition and weakness," which was so great that the French Commission of Enquiry received special instructions to question these victims. They took the evidence of over 300 witnesses in 28 different localities. To do justice to their case one ought to quote the whole report—children brutally torn away from their mothers, poor wretches crowded for days together in carriages so tightly packed that they had to stand up, cases of madness occurring among these half-stifled crowds, howling with hunger. But we must confine our quotations to a few items of "Kultur." "While the men of Combres set out for Germany, the women and children were shut up in the village church. They were kept there for a month, and passed their nights seated in the pews. Dysentery and croup raged among them. The women were allowed to carry excrement only just outside the church into the churchyard."—"At least four of the prisoners were massacred because they could not keep up with the column, being completely exhausted."—"Fortin, aged 65, and infirm, could not go any further. They tied a rope to him, and two horsemen held the ends so that he had to keep the pace of the horses. As he kept falling down at every moment, they made him get up by poking him with their lances. The poor wretch, covered with blood, prayed them to kill him."

"189 inhabitants of Sinceny, who were sent to Erfurt, arrived there after a journey of 84 hours, during which each of them got nothing but a single morsel of bread weighing less than four ounces. Another convoy spent four days on the railway journey and were only fed once, and were beaten with

sticks and fists and with knife handles." The same brutalities were experienced in the German cities through which they passed, and very few of the civilian prisoners escaped being buffeted by the infuriated crowds or being spat upon.

So much for the journey. Now for what happened to them after their arrival! "The declarations made to us show clearly that the bulk of the prisoners almost collapsed from hunger. After food had been distributed, when anything was left, you saw some of them rush to the neighbourhood of the kitchens; hustled and beaten by the sentries, these unfortunates risked blows and abuse to try and pick up some additional morsels of the sickening food. You saw men, dying of hunger, picking up herring heads, and the grounds of the morning's decoction."

At Parchim, where 2,000 French civilians from 12 to 77 years of age were interned, two starving prisoners who asked for the scraps left over were beaten with the butt-ends of rifles to such an extent that they died of their wounds. The young son of one of them who tried to protect his father was tied to a stake for a week on end.

On oath, Dr. Page deposes: "Those who had no money almost died of hunger. When a little soup was left, a crowd of unfortunates rushed to get it, and the non-commissioned officers got rid of them at last by letting the dogs loose on them." But what is the need of all these details and of all this evidence? Look at the 10,000 who came back after being repatriated and see what the bandits have done to them. Reader, summon up your courage and peruse to the bitter end the conclusions of the Official Commission of Enquiry. "It is impossible to conceal the melancholy and indignation we felt on seeing the state of the 'hostages'[22] whom the Germans had returned to us after they had kidnapped them in defiance of the rights of nations. During our enquiry we never ceased hearing the perpetual coughs that rent

them. We saw numbers of young people whose cheerfulness had disappeared apparently for ever, and whose pale and emaciated faces betrayed physical damage probably beyond repair. In spite of ourselves we could not help thinking that scientific Germany had applied her methodical ways to try and spread tuberculosis in our country. Nor were we less profoundly moved to thought by the sight of women mourning their desolated hearths and missing or captive children, or by the moral impression left on the faces and bearing of many prisoners by the hateful regime which was intended to destroy, in those who were subjected to it, the feeling of human dignity and self-respect." [23]

FOOTNOTES:

[18] *Prisoners*, as well as wounded, have very often been massacred on the field of battle. As to the treatment that prisoners—French, Belgian, Russian and English—have undergone in German camps, it is a pitiful tale that we do not intend to begin here. Some day it must be written. With the actual evidence before us, the lot of the German prisoners in England, Russia and France must be compared with that of ours in Germany. The most indifferent reader will feel his heart stirred within him, and will hesitate to say whether we were "generous," or whether we were "fools."

[19] We speak of those who have left—but what of those who have remained in Belgium and France, under the German heel? The time has not yet come for writing this piece of history, but we cannot refrain from referring to the sufferings of these children of the North, boys and girls, torn from their families, carried off like bands of slaves to other invaded regions to be employed on forced labour. France has apprised the neutral countries of these facts: Will they remain silent?

[20] Further on it will be seen that much worse happened on numerous other journeys.

[21] "We got one pound of black sour bread per diem. In the morning we had a tepid decoction intended for coffee; at mid-day a pint and a half of thick soup, and at night rather less than a pint of thin soup. On three occasions only did we get potatoes, but never once meat. Cabbage soup was the usual thing and after a certain time it turned our stomachs. Certain prisoners were employed in chopping up the cabbages to make sauerkraut, and they had to keep the broken leaves, as these were used up for our soup."

[22] Through an old habit, the Commission makes use of this word; they are not "hostages," of course.

[23] It must also be noted that when the Commissioners making the enquiry saw the repatriated people, they had had some time in which to recover, first in Switzerland, and then in France. The arrival of these pitiable drafts gave rise (even among those of the Swiss people who were in principle the least hostile to Germany) to such a feeling of horror for their executioners that the Kaiser took warning and thought it wiser to suspend the repatriations for several months. For the welcome and the kind care which our poor martyrs received at the hands of the Swiss, our grateful thanks and salutations are due!

GERMAN EXCUSES: LIES AND CALUMNY

The Boches have taken up three positions in succession. In the first place, in their speeches, in their writings and by commemorative pictures and medals, *they have gloried in their misdeeds*, thus declaring that Kultur is above morality (as stated by their writer, Thomas Mann), and that the right of German might is above everything. Then, in the second place, when they discovered that in the world outside them there was something known as a "moral conscience," not understood by them, but still to be reckoned with, *they cynically denied the charges*. Finally, when they were driven from this second trench, when simple negation became impossible, *they had perforce to explain their crimes*.

Their commonest explanation is this, "Civilians fired on us." [24] The French Commission of Enquiry came to the following conclusion on this point: "This allegation is false, and those who put it forward have been powerless to give it the appearance of truth, even though it has been their custom to fire shots in the neighbourhood of dwellings, in order to be able to affirm that they have been attacked by innocent inhabitants, on whose ruin or massacre they had resolved."

Enquiries conducted by high magistrates have established the fact that German officials are very frequently guilty of premeditated lies. It is probable, all the same, that many German soldiers, on entering Belgium or France, were obsessed by the idea of civilians firing on them. The cry of a

soldier trembling with fear, drunk, or thirsting for pillage—"Man hat geschossen (they have fired)"—is enough for a locality to be delivered up at once to the wildest fury. "When an inhabitant has fired on a regiment," said a soldier at Louvain, "the place belongs to the regiment." What a temptation for a Boche soldier to fire a shot that will at once unloose pillage and massacre!

Some mistakes have *possibly* been made which could have been avoided by the least enquiry. Read this admission recorded in his diary by a Saxon officer: "The lovely village of Gué-d'Hossus has been given over to the flames, though innocent in my opinion. I hear that a cyclist fell off his machine and that his fall caused his rifle to go off of itself. As a consequence there was firing in his direction. Then, the male inhabitants were simply hurled straight away into the flames. Such horrors will not be repeated, we must hope ... There ought to be some compulsion to verify suspicions of guilt in order to put a check on this indiscriminate shooting of people."

The only shots fired at them inside, or in the neighbourhood of, villages have been those of French or Belgian soldiers covering their retreat. Sometimes this has been discovered, but too late, and they have continued their crimes—in order to justify them.

Here is the statement of a neutral: "In one village they found corpses of German soldiers with the fingers cut off, and instantly the officer in command had the houses set on fire and the inhabitants shot.... In the same district a German officer was billeted with a famous Flemish poet; the officer behaved courteously, was treated with consideration, and allowed himself to talk freely: his complaint was the misdeeds of his soldiers. Near Haelen, he told his host, he had to have a soldier shot on finding in his

knapsack some fingers covered with rings: the man, on being questioned, admitted that he had cut them off the bodies of the German dead." [25]

In exceptional cases an enquiry is held; and in every such instance the truth is discovered and massacre prevented.

At the end of August, Liebknecht, [26] a member of the Reichstag, set out in his car for Louvain. He came to a village where there was considerable excitement going on. The Germans had just found three of their men lying dead on the road, and accused the peasants of being responsible for the deed. Liebknecht examined them, and was not long in obtaining proof that the Germans had been killed by Belgian riflemen. At Huy there were shots in the night; two soldiers wounded; the populace accused; the mayor arrested and condemned to death; but he knew that there were no Allied troops in the neighbourhood, and also that his own people had not fired a shot. "Shoot me, if you like," he said calmly, "but not before extracting the bullets from the wounded." The officer, less of a brute than some, gave his consent to this. The bullets in the wounds were German bullets. But the Germans do not even require a pretext to take action. Their first crime, to our knowledge, was on August 4th. Some officers dashed up to Herve in a car, challenged two civilians while crossing the bridge and, without giving them time to answer, shot them down with revolvers.

In their private diaries they accuse one another, each throwing on his neighbour the responsibility for crimes committed. A cavalryman writes: "It is unfortunately true that the worst elements of our Army feel themselves authorised to commit any sort of infamy. This charge applies particularly to the A.S.C." A bombing officer: "*Rethel*, September 2nd. Discipline becoming lax. Brandy. Looting. The blame lies with the *infantry*." An infantry officer: "Discipline in our company excellent—a contrast with the rest. The *Pioneers* are not worth much. As for the *Artillery*, they are a band

of brigands." A final extract seems to be the only one that gives the truth: "Brin ... *troops of all arms* are engaged in looting."

It has been possible sometimes to prove premeditation. On the 17th August, a German officer was billeted with a Belgian magistrate. Their talk turned on Dinant. "Dinant," said the officer, "is a condemned town!" M. X ..., of Dinant, happening to be in another town, made the acquaintance of a German officer, who said to him on August 20th, "You come from Dinant? Don't go back. It's a bad place, and will be destroyed." Troops on their march towards Andenne announced in villages through which they passed that they were going to burn the town and massacre the inhabitants. At Louvain, a German officer, treated generously by a middle-class family, and appreciating their courtesy, rushed to their house on the 25th at 11 o'clock in the morning,[27] and earnestly pressed his hosts to leave without delay, refusing to give them any explanation. The family, puzzled and perturbed by his appeal, went off and so escaped.

* * * * *

In the eyes of the moralist the worst of all their crimes will perhaps be this, that the wretches tried to dishonour Belgium, after first assassinating her. They have dared to say, write, and proclaim publicly, and affirm to Neutrals, that Belgian women and girls had mutilated German wounded soldiers, blinding them with scissors or with boiling water. The reports of the Belgian Commission of Enquiry have been replied to in a counter report[28] published as a German White Book. This enquiry and these documents will live in history. In centuries to come they will hang as a heavy weight on the Kaiser's memory and the conscience of Germany. Listen to the pathetic conclusion of the Belgian reply: "Before God and before man, the Belgian Government has no hesitation in giving this as its opinion of the conduct of the German Government towards the Belgian

nation: 'He is twice guilty who violates the rights of others and then attempts, with singular audacity, to justify himself by imputing to his victim faults that were never committed.'"[29]

It still remains to be explained how, by what means, by what deadly influences, this German nation, consisting of men who, as individuals, are not all brigands, has reached and been led to this state of savagery? In the preparations for this *collective madness* of a people, what part has been played by its leaders of thought and its politicians, by race and by education? This is a disturbing phenomenon which students of mental disease[30] will study later, but on the examination of which we cannot here embark. It is not for us to seek the pathological cause for this moral decay—this decadence. We have only to note its *effects*.

FOOTNOTES:

[24] Need it be noted here that even if in any locality an imprudent civilian had fired a shot, it would still remain—in accordance with the Hague Convention, International Law, and plain morality—a veritable crime to massacre in a heap, haphazard, and without enquiry, so many innocent souls?

[25] L.H. Grondijs, "Les Allemands en Belgique," p. cxix. (Paris, Berger-Levrault, Publishers).

[26] Liebknecht was too honest and embarrassing a witness for Germany. He has been thrown into prison. We salute him.

[27] The martyrdom of Dinant began on August 24th; that of Louvain on the 25th August, at 5 p.m.

[28] It may be recalled that commissions of enquiry, at which *both* sides should be represented, were offered by Belgian Socialists to German Socialists, by Belgian Freemasons to German Freemasons, by Belgian Bishops to German Bishops. Three proposals. Three refusals!

[29] France has suffered from similar calumny. We alluded above (note, p. 37) to the declaration of a German army doctor that orders were given to amputate, as a reprisal, "all wounded limbs." So we are said to have done that? A monstrous lie, which will be spurned indignantly by all who know the honourable traditions of our ambulances and of our French doctors. The *method of systematic lying* has been shown to the life in connection with the use of asphyxiating gas. The Boches made immense preparations for the use of this gas. When their organization was complete, they took care, before acting, to publish each day for a week in their communiques, little notes announcing that the enemy were "making wide use of this new method of warfare,"—a statement contrary to fact, and known by them to be so, but one that was calculated to mislead public opinion. When they considered that public opinion was sufficiently "prepared," they launched their deadly gases and their flaming liquids; and we needed a long time, needed also to overcome our moral hesitation, to make sure of our defence and our reply. *Cynical lying* with the Germans is not only admitted, but *gloried in*. When it was completely proved that, in order to start the war of 1870, Bismarck had committed *forgery*. Professor Hans Delbrück exclaimed, "Blessed is the hand that forged the Ems despatch."

[30] Who, except the specialist in mental diseases, can deal with this proclamation of the Kaiser to his Army of the East?: "Remember that you are the chosen people! The Spirit of the Lord has descended upon me as Emperor of the Germans! I am the instrument of the Most High. I am His sword. Woe and death unto those who resist my will! Woe and death unto those who believe not in my mission!"

THE GERMAN APPEAL

APPEAL TO THE CIVILISED WORLD

Now that we have reached the close of this book of horrors, let us impanel the 93 Germans of light and learning, and confront them with the words of their own manifesto:

"As representatives of German Science and Art, we the undersigned, declare that:—

"It is not true that Germany provoked this War....

"It is not true that we have criminally violated the neutrality of Belgium....

"It is not true that our soldiers have made any attack on the life or property of a single Belgian citizen without being forced to it by sheer necessity....

"It is not true that our troops brutally destroyed Louvain....

"It is not true that we have conducted warfare in defiance of International Law. Our soldiers commit neither undisciplined acts nor cruelties....

" ... In this struggle we shall continue to the end to act as a civilised nation, to whom the heritage of a Goethe, a Beethoven or a Kant is as sacred as our own hearth and home. We answer for that in our own name and on our honour."[31]

And since irony is more powerful than abuse, let us set down here, without a word of comment, a few German utterances:—

The Kaiser: "We are the salt of the earth. God created us to civilise the world."

The Cardinal-Archbishop of Cologne: "It is with God that our soldiers set out for this war that has been inflicted upon us, and in which we are fighting for the sacred treasures of Christianity, and for its own particular gift, Kultur."

Dryander, a Protestant Minister, and preacher to the Royal Court at Berlin: "On our side we are fighting with a self-control, a conscience, and a gentleness unexampled perhaps in the history of the world."

Professor Lasson: "Our characteristics are humanity, gentleness, conscience—the Christian virtues. In a world of evil, we stand for love, and God is with us."

And, finally, this older and memorable saying of their great philosopher Hegel: "The destiny of the German race is to supply the sustaining pillars of Christian teaching."

FOOTNOTES:

[31] Speaking of honour, it is as well to recall here the reply made by a German officer to the schoolmaster at Chanteheux. The schoolmaster quite

simply pledged his word of honour that no inhabitant had fired: "You French pig," the brute shouted, "don't talk of honour—you have none."

APPEAL BY BELGIAN WORKMEN

800,000 copies of this pamphlet had already been sent out when the world rang with the tragic appeal of the Belgian workmen to their brother workers in other lands. This appeal ought to be fixed on the door of every factory and workshop. Every worker, every citizen, should study it. We regret that we cannot reprint it here in full, but the following extracts will at least give an idea of this new crime committed by Germany:—

"Workers,—In the name of the international bonds that unite all workmen, the working classes of Belgium—threatened, without exception, with slavery, deportation, and forced labour for the enemy's gain—send to the working classes in other lands a supreme appeal.

"Germany, as you know, attacked and terrorised Belgium in 1914 for having defended her right to neutrality and her faith and honour.

"Germany has been martyrizing Belgium. She has from that moment onwards turned the land into a prison: the frontiers are armed against Belgians like a battle front.. All our constitutional liberties have been abolished. There is no longer safety anywhere; the life of our citizens is at the mercy of the policeman,—arbitrary, limitless, pitiless ... Belgian industrial idleness has been the creation of the Germans, maintained by them for their own profit.

[32] To these 500,000 unemployed they have for the last month been saying: 'Either you will sign a contract to work for Germany, or you will be reduced to slavery.' In either case, it means exile, deportation, forced labour in the interests of the enemy, and against the interests of our country: formidable punishments, the cruellest ever invented by tyranny for the punishment of crimes—and what *are* the crimes alleged?... On the western front, Belgian workmen—your brothers and ours—are being forced to dig trenches, to build aviation camps, to fortify the German lines, and when the victims, in spite of everything, are firm in their refusal to take part in work forbidden by International Law, they are starved and beaten into illness, wounded, and sometimes even *killed*.

"In Germany, they are turned on to work in mines, and at lime-kilns, quite regardless of their age, profession, or trade. Youths of seventeen, old men of seventy, are deported in haphazard masses. *Is not this a revival of ancient Slavery with all its horrors?*... Do you know, brothers, what the Germans throw to their victims by way of pay? 30 pfennigs (3d.) a day!

"Workers: Never forget that the soldiers-who are acting as the torturers or our Belgian workmen are themselves German workers!"

"In the depths of our distress, we count on you. It is for you to act! For ourselves, even if brute force succeeds for the moment in reducing our bodies to servitude, we shall never give our consent.

"A final word: Whatever tortures we may undergo, we do not wish for Peace except with the independence of our country and the triumph of justice.

"THE WORKMEN OF BELGIUM."

FOOTNOTES:

[32] By levying on Belgium a war contribution which already exceeds £40,000,000—by transporting to Germany food, merchandise and various products to the value of more than £200,000,000—by seizing and despatching to their own country the greater portion of our raw material, machines and accessories—by issuing threatening edicts to prevent localities from using the unemployed on their own important works of public utility.

CONCLUSION

What is our object?

Is it to incite our soldiers to commit, if chance arises, atrocities like theirs? We repudiate with horror a thought such as that. *Defensive* reprisals (asphyxiating gas, liquid fire, etc.) are sometimes indispensable. Reprisals for *revenge* would be unworthy of us. But—without speaking of personal punishments, demanded by outraged conscience, and essential in order that the two indivisible principles of right and of responsibility may still exist in the world—we must make it absolutely impossible for the Wild Beast to break out again. And how, when the settling time draws near, and, in spite of weariness, a new effort is needed to realise conditions of peace with guarantees for the future—how could the Allied Nations accept the sacrifices still demanded of them, if they remained in ignorance?

It is not enough for these crimes to be known by Governments and by a few hundred people with leisure and inclination to read collections of great volumes. They must be known by everybody, by the entire people, by the People, who—in our proud and free countries—control, support, direct their Governments and are the sole masters of their own destiny.

Our peoples ought to know the crimes committed in the name of "Kultur," in order, at all costs, to take the precautions necessary to prevent for ever their return. That is our first object. The second is this: to all our

martyrs we have a sacred duty—that of remembrance. There, where they fell, we shall doubtless carve their names in stone or bronze. But what of a time further away? When, after the long sufferings of this war, freed humanity takes up again its works of peace, we shall see the Germans reappear in every land, at every cross-road—men of commerce, industry, finance, science, men of the people and of society—in every place where those of all countries, all races and all colours meet and rub elbows. And what is our attitude to be? Our answer is this: So long as the nation in whose name and by whose hands these atrocities have been committed has not herself solemnly cast from her the scoundrels who dragged her into such decadence, we shall consider that it would betray our martyrs for us even to rub shoulders with their executioners, and that until the day arrives—if it ever does arrive—of a striking moral repentance, to *forget* would be to *condone*.

L. MIRMAN, Prefect of Meurthe-et-Moselle.

G. SIMON, G. KELLER, Mayor of Nancy. Mayor of Lunéville.

*** END OF THE PROJECT GUTENBERG EBOOK THEIR CRIMES

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project

Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund.

If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you ‘AS-IS’, WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.